

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

Docket No. 23-13

EASY SHIPPING CORPORATION

RESPONDENT.

COMPLAINANT'S MOTION TO LEAVE TO AMEND THE PLEADINGS

Pursuant to 46 CFR § 502.66(a) and 46 CFR § 502.69 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant USL Auto Exporting Inc (hereinafter "Complainant"), by and through its undersigned manager, hereby submits this Motion requesting leave to amend the pleadings.

Respectfully submitted,
DATED: March 19, 2024,

1. Introduction

Complainant seeks to amend the pleadings to accurately reflect the damages sustained as a result of the Respondent's, Easy Shipping Corporation (hereinafter "Respondent"), violation of the Shipping Act. Permitting the amendment is necessitated by the discovery of additional information that substantiates a revised calculation of damages.

2. FACTUAL BACKGROUND

Initially, Complainant filed for damages in the amount of \$52,710.00. However, further analysis and subsequent findings have necessitated an upward revision of this figure to reflect the actual damages incurred.

3. Reason for Amendment

As a direct result of Easy Shipping's violation of the Shipping Act, USL Auto Exporting suffered actual damages in an amount above \$67,898.00. To mitigate the demurrage costs, USL Auto Exporting intervened to pay CMA CGM S.A. directly. Easy Shipping's violation of the Shipping Act gave rise to USL Auto Exporting losing the payment of the original basic freight, return basic freight fees, misdeclaration fees, inspection fees, and the value of the cargo and cost of hauling and loading. Easy Shipping's steadfast refusal to work on the shipment left USL Auto Exporting no choice but to pay such costs in advance.

These costs are "actual injury" under 46 U.S.C. § 41305(a). Breakdown of Damages:

- Original Freight (Invoice #NAOB0316822): \$2,865.00 (Paid by Claimant: \$3,300.00)
- Late Payment for Original Freight (Invoice #NAOB0337335): \$75.00
- Return Freight (Invoice #NAOB0367804): \$4,310.52
- Misdeclaration Fee (Invoice # NAOB0347101): \$2,000.00
- Return Inspection Fees (Invoice # NAIB1399975): \$2,306.00

Cost of Vehicles:

- 2005 Toyota Tundra (VIN: 5TBKT42115S468135): \$9,900.00
- 2011 Kia Sorento (VIN: 5XYKT4A17BG175020): \$4,500.00
- 2012 Yamaha FX SHO (VIN: YAMA3067B212): \$7,500.00
- 2006 Lexus GX 470 (VIN: JTJBT20XX60123772): \$7,500.00

Additional Costs Incurred by Complainant:

- Loading Costs: \$800.00
- Towing Charges for Four Vehicles: \$1,800.00
- Loss of Profit (Calculated as 40% of the shipment value): \$19,400.00

The total Damages: \$67,898.00. These costs constitute "actual injury" under 46 U.S.C. §41305(a), resulting from Respondent's failure to comply with the Shipping Act.

4. LEGAL BASIS FOR AMENDMENT

Under 46 C.F.R. § 502.94, amendments to pleadings are allowed at any stage of the proceedings upon reasonable notice and upon such terms as are just. The Complainant asserts that amending the pleadings to specify the actual damages is just and necessary for the accurate adjudication of this case, in compliance with the Shipping Act and the Commission's regulations. The requested amendment will enable the Commission to fully understand the extent of the damages and to provide a just resolution to this dispute.

5. PRAYER FOR RELIEF

Complainant respectfully requests that the Federal Maritime Commission grant this Motion to permit the amendment of pleadings to accurately reflect the total damages as \$67,898.00.

WHEREFORE, Complainant, USL AUTO EXPORTING INC., respectfully requests that this Honorable Commission permit amendment of pleadings.

Respectfully submitted,

DATED: March 19, 2024,

USL AUTO EXPORTING INC.

By: s/ANIS HOUSSEIN

ANIS HOUSSEIN

Vice President for COMPLAINANT

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PISCATAWAY, New Jersey 08854

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 19th day of March 2024, a true and correct copy of the foregoing COMPLAINANT'S MOTION TO LEAVE TO AMEND THE PLEADINGS was served via electronic mail on:

EASY SHIPPING CORPORATION (fracati@rafatilegal.com)

By: s/ANIS HOUSSEIN
ANIS HOUSSEIN